

§ 254-a. Procedure for district attorney presentation. 1. The county attorney and the district attorney of a county, and the corporation counsel of the city of New York and the district attorney of any county in such city, may enter into an agreement whereby the district attorney shall present the case in support of the petition in which a designated felony act has been alleged.

2. Where such agreement has been entered into, in the case of a respondent who is alleged to have done two or more acts which, if done by an adult, would constitute joinable offenses pursuant to subdivision two of section 200.20 of the criminal procedure law, the district attorney shall present the juvenile delinquency petition with respect to all such acts, notwithstanding less than all of such acts constitute designated felony acts.

3. Where such agreement has been entered into, the district attorney shall also present petitions which have been filed against all respondents who are accused of participating, in concert, in the commission of a designated felony act, notwithstanding less than all of such respondents are charged with having committed a designated felony act. Such petition shall be adjudicated in a single fact-finding hearing, unless the court orders separate fact-finding hearings for good cause shown.

4. When presenting cases the district attorney shall have the same powers under this act as the corporation counsel or county attorney and shall assist in all stages of the proceedings including appeals in connection therewith.

5. Such agreement shall be subject to the approval in the city of New York of its mayor, and outside the city of the respective county executive, if there be one, otherwise, the board of supervisors.

6. The district attorney may elect to present the petition against a respondent, who was the defendant in a criminal proceeding removed to the family court pursuant to article seven hundred twenty-five of the criminal procedure law, when a proceeding under article three is

commenced as a result of the order of removal.